



Dak Guru

A Self Learning Portal

www.dakguru.com

CCS (TEMPORARY SERVICE) RULES, 1965

DISCLAIMER: *This booklet has been prepared strictly from an examination point of view. While every effort has been made to ensure accuracy and the inclusion of recent changes, amendments, and updates to the relevant Acts, Rules, and Regulations, this document is intended as a study aid only. Readers and students are strongly recommended to refer to official government sources or gazettes for the most reliable and authoritative information.*

CENTRAL CIVIL SERVICES (TEMPORARY SERVICE) RULES, 1965

Rule 1. Short title, commencement and application

(1) These rules may be called the **Central Civil Services (Temporary Service) Rules, 1965**.

(2) They shall come into force at once.

(3) Subject to the provisions of sub-rule (4), these rules shall apply to all persons:—

- (i) who hold a civil post including all civilians paid from the **Defence Services Estimates** under the Government of India and who are under the rule-making control of the **President**, but who do not hold a lien or a suspended lien on any post under the Government of India or any State Government;
- (ii) who are employed in temporary service in a separate cadre or as temporary additions to a cadre of permanent posts.

(4) Nothing in these rules shall apply to:—

- (a) Railway servants;
- (b) Government servants not in whole-time employment;
- (c) Government servants engaged on contracts;
- (d) Government servants paid out of contingencies;
- (e) persons employed in extra-temporary establishments or in work-charged establishments other than the following, namely:—
 - (i) persons employed in the **Central Public Works Department** who are optionally pensionable or who are not effecting any contribution to a Contributory Provident Fund;
 - (ii) persons employed in workshops and other similar establishments who are optionally pensionable;
 - (iii) persons employed in the **Central Excise and Salt and Customs Departments** and who are optionally pensionable;
- (f) non-departmental telegraphists and telegraphmen employed in the **Posts and Telegraphs Department**;
- (g) such other categories of employees as may be specified by the Central Government by notification in the **Official Gazette**.

IMPORTANT NOTE : The application of these rules is subject to the **Central Civil Services (Pension) Rules, 2021** for matters related to pension and gratuity where applicable, following the rationalization of service rules.

Rule 2. Definitions

In these rules, unless the context otherwise requires:—

- (a) "**Appointing Authority**" means the authority empowered by the President to make appointments to the post which the Government servant for the time being holds;
- (b) "**Government service**" means temporary service under the Government of India, and includes in the case of former employees of the Government of a **Part 'B' State**, service rendered by them under such Government;
- (c) "**Quasi-permanent service**" means temporary service declared or deemed to be quasi-permanent under Rule 3 of these rules (as they stood before the commencement of the Central Civil Services (Temporary Service) Amendment Rules, 1989);
- (d) "**Temporary service**" means the service of a temporary Government servant in a temporary post or officiating service in a permanent post under the Government of India.

IMPORTANT NOTE : The concept of "**Quasi-Permanent**" service was abolished w.e.f. **01.01.1986**. However, the definition remains in the text for historical reference to employees who may have held such status prior to the amendment.

Rule 3. [Omitted]

(Omitted by the Central Civil Services (Temporary Service) Amendment Rules, 1989)²⁶²⁷

Rule 4. [Omitted]

(Omitted by the Central Civil Services (Temporary Service) Amendment Rules, 1989)³¹

Rule 5. Termination of temporary service (1) (a) The services of a temporary Government servant shall be liable to termination at any time by a notice in writing given either by the Government servant to the Appointing Authority or by the Appointing Authority to the Government servant;

(b) the period of such notice shall be **one month**.

Provided that the service of any such Government servant may be terminated forthwith and on such termination the Government servant shall be entitled to claim a sum equivalent to the amount of his pay plus allowances for the period of the notice at the same rates at which he was drawing them immediately before the termination of his services or, as the case may be, for the period by which such notice falls short of **one month**.

IMPORTANT NOTE : While the rule specifies "**Pay plus Allowances**", administrative instructions clarify that "Allowances" includes **Dearness Allowance (DA)** and **House Rent Allowance (HRA)** admissible on the date of termination.

(2) (a) Where a notice is given by the Appointing Authority terminating the services of a temporary Government servant, or where the service of any such Government servant is terminated on the expiry of the period of such notice or forthwith by payment of pay plus allowances, the Central Government or any other authority specified by the Central Government in this behalf or a head of Department, if the said authority is subordinate to him, may, of its own motion or otherwise, reopen the case and after making such inquiry as it deems fit:—

- (i) confirm the action taken by the Appointing Authority;
- (ii) withdraw the notice;
- (iii) reinstate the Government servant in service; or
- (iv) make such other order in the case as it may consider proper.

Provided that except in special circumstances, which should be recorded in writing, no case shall be re-opened under this sub-rule after the expiry of **three months**:—

- (i) from the date of notice, in a case where notice is given;
- (ii) from the date of termination of service, in a case where no notice is given.

(b) Where a Government servant is reinstated in service under sub-rule (2), the order of reinstatement shall specify:—

- (i) the amount or proportion of pay and allowances, if any, to be paid to the Government servant for the period of his absence between the date of termination of his services and the date of his reinstatement; and
- (ii) whether the said period shall be treated as a period spent on duty for any specified purpose.

Rule 6. Termination of service of temporary Government servant on account of physical unfitness

Notwithstanding anything contained in **Rule 5**, the services of a temporary Government servant may be terminated at any time without notice on his being declared physically unfit for continuance in service by an authority who would have been competent to declare him as permanently incapacitated for service had his appointment been permanent.

Rule 7. [Omitted]

(Omitted vide Central Civil Services (Temporary Service) Amendment Rules, 1989, consequent to the abolition of Quasi-Permanent status).

Rule 8. [Omitted]

(Omitted vide Central Civil Services (Temporary Service) Amendment Rules, 1989).

Rule 9. [Omitted]

(Omitted vide Central Civil Services (Temporary Service) Amendment Rules, 1989).

Rule 10. Terminal Gratuity payable to temporary Government servants

(1) Subject to the provisions of sub-rule (1-B), a temporary Government servant who retires on superannuation or is discharged from service or is declared invalid for further service shall be eligible for gratuity at the rate of:

Length of Continuous Service	Rate of Terminal Gratuity
Below 5 years	Nil
5 years and above but below 10 years	One-half of a month's pay for each completed year of his service.
10 years and above	One month's pay for each completed year of his service, subject to a maximum of Rs. 15,000 or 15 months' pay , whichever is less.

 STATUTORY UPDATE :

- **NPS Employees:** For employees appointed on or after **01.01.2004**, the payment of gratuity is now governed by the **Central Civil Services (Payment of Gratuity under National Pension System) Rules, 2021**.
- **Gratuity Limits (7th CPC):** The maximum limit of Retirement Gratuity and Death Gratuity has been enhanced to **Rs. 25 Lakhs** (effective **01.01.2024**, consequent to DA crossing 50%). The monetary ceiling of "Rs. 15,000" in the original 1965 Rule is obsolete for current settlements.
- **Service Definition:** "Continuous Service" generally includes all periods of service rendered in a temporary capacity without interruption.

(1-A) In the case of a temporary Government servant who is compulsorily retired from service as a penalty, the authority competent to impose such penalty may specify the amount of gratuity not exceeding the amount which would have been admissible to him under sub-rule (1) if he had retired on superannuation.

(1-B) In the case of a temporary Government servant who retires from service on attaining the age of superannuation or on his being declared to be permanently incapacitated for further Government service by the appropriate medical authority, after he has rendered temporary service of not less than **10 years** or who has sought voluntary retirement by giving three months notice in writing on completion of **20 years** service, provisions of **Central Civil Services (Pension) Rules** relating to gratuity shall apply.

(2) In the event of death of a temporary Government servant while in service, his family shall be eligible for **Family Pension** and **Death Gratuity** at the same scale and under the same provisions as are applicable to permanent Central Civilian Government servants under the **Central Civil Services (Pension) Rules, 2021**.

(3) No gratuity shall be admissible under this rule to a Government servant:—

- (a) who resigns his post or who is removed or dismissed from service as a disciplinary measure;
- (b) who is re-employed after retirement on superannuation or retiring pension.

Provided that a temporary Government servant who resigned from service to take up, with prior permission, an appointment under a Corporation or Company wholly or substantially owned or controlled by the Government or in or under a body controlled or financed by the Government, shall be paid terminal gratuity at the rate prescribed under sub-rule (1) in respect of the service rendered by him under the Government.

Calculation of Gratuity:

- The "Pay" for the purpose of Gratuity calculation includes **Basic Pay + Non-Practicing Allowance (if any)**.
- **Dearness Allowance (DA)** is admissible for calculation of **Retirement Gratuity** and **Death Gratuity** (as per 7th CPC orders), unlike the original 1965 text which often excluded DA for Terminal Gratuity.

